Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1378
Claimant:	Carla Franco
Adjuster:	Jerry Hanson

12-5-23
First notice of loss received from the insured's agent reporting a low-speed collision in a parking lot with a second vehicle backing out of a space. The claimant is named as the injured party and is represented by counsel, so all contact will go through the attorney's office.

12-12-23
Confirmed the driver is listed on the policy and that coverage was in force at the time of the loss. No issues with the policy terms have been identified at this stage.

1-29-24
Spoke with the other driver, who gave an account matching the insured's description of how the impact happened. The other driver also said they did not see the claimant's vehicle until contact was made.

2-12-24
Reviewed photographs submitted by the insured. The visible damage to the front of the insured vehicle and the rear of the other vehicle is largely consistent with the impact described in the reports.

2-28-24
Obtained statements from two witnesses who were in the lot at the time. Both independently described the backing vehicle striking the claimant's car at low speed.

3-9-24
Attorney's office sent a letetr confirming representation and requesting that the claim be handled in writing. Acknowledged receipt and noted the file.

5-18-24
Recorded a recorded statement from the claimant through counsel. The claimant described the same sequence of events as in the first report and gave a consistent account of the impact.

5-23-24
Received the initial medical records describing a knee injury. The reported injury appears plausible given the nature of the collision, and no prior treatment to the same body area is shown in the records reviewed so far.

5-31-24
Noted that the claimant's seating position at the time of impact is not fully clear from the statements. Requested additional information from counsel to clarify this point.

6-19-24
Reviewed the vehicle repair estimate. No earlier damage to the veihcle has been identified in prior claim history or inspection notes, and nothing suggests the damage predates the policy start date.

6-21-24
Treatment has continued somewhat longer than is typical for this type of knee injury. Requested updated treatment notes and a treating physician's summary to understand the course of care.

7-19-24
Summary review in progress. Liability appaers clear from the consistent accounts and physical evidence, and the file will be referred for injury evaluation once the requested medical and seating-position information is received.

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Recorded Statement

Claim number:	C-1378
Statement of:	Carla Franco
Taken by:	Jerry Hanson
Date:	12-5-23

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the parking lot collision you reported in Conroe. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please state your full name and the address where you currently receive mail.

A: I'd rather just keep to the accident itself, if that's okay.

Q: That's fine for now. Can you describe where you were when the collision happened?

A: I was pulling out of a parking space near the store entrance. The lot was fairly busy, and I was looking for a gap between cars.

Q: What direction were you traveling when the other vehicle made contact?

A: I was backing out slowly, maybe a few miles an hour. The other car came down the aisle from my right side and hit the rear passenger door.

Q: Did you see the other vehicle before the impact?

A: Not really. I glanced over my left shoulder first, then my right, and by the time I looked again it was already there.

Q: Were there any witnesses, or did anyone speak to you at the scene?

A: A woman with a shopping cart stopped and asked if I was okay. I didn't get her details.

Q: Can you tell me about the injury you're claiming?

A: My right knee took the brunt of it. It hit the steering column when we stopped. It's been swollen and I've had trouble bending it, so I went to see a doctor a couple of days later.

Q: Have you had any prior problems with that knee?

A: I had some soreness years ago after a sports injury, but nothing that stopped me from working or driving.

Q: Thank you. Is there anything you'd like to add to your statement?

A: No, I think that covers it. I just want to get this resolved so I can get my knee treated properly.

Q: Thank you for your cooperation. This concludes the recorded statement.